

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1456

By: Bergstrom of the Senate

and

Kendrix of the House

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9 An Act relating to motor vehicles; amending 47 O.S.
10 2021, Section 759, as last amended by Section 14,
11 Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section
12 759), which relates to the Board of Tests for Alcohol
13 and Drug Influence; extending sunset date; updating
14 statutory language; providing an effective date; and
15 declaring an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 47 O.S. 2021, Section 759, as last
18 amended by Section 14, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025,
19 Section 759), is amended to read as follows:

20 Section 759. A. There is hereby re-created, to continue until
21 ~~July 1, 2026~~ July 1, 2031, in accordance with the provisions of the
22 Oklahoma Sunset Law, the Board of Tests for Alcohol and Drug
23 Influence to be composed of the following members beginning July 1,
24 2015:

1 1. The Dean of the Oklahoma State University College of
2 Osteopathic Medicine, or a designee;

3 2. The Dean of the University of Oklahoma College of Medicine,
4 or a designee;

5 3. The Commissioner of Public Safety, or a designee;

6 4. The Director of the Oklahoma State Bureau of Investigation,
7 or a designee;

8 5. The State Commissioner of Health, or a designee;

9 6. The Director of the Council on Law Enforcement Education and
10 Training, or a designee;

11 7. One certified peace officer who is a member of a local law
12 enforcement agency selected by the Oklahoma Sheriffs and Peace
13 Officers Association; and

14 8. One person selected by the Oklahoma Association of Chiefs of
15 Police.

16 Members shall serve without pay other than reimbursement of
17 necessary and actual expenses as provided in the State Travel
18 Reimbursement Act. Each member shall receive an appointment in
19 writing which shall become a permanent part of the records of the
20 Board. The chair and ~~vice-chair~~ vice chair shall be elected from
21 the membership of the Board every two (2) years. The Board is
22 authorized to appoint a State Director of Tests for Alcohol and Drug
23 Influence and other employees, including, but not limited to,
24 persons to conduct training and provide administrative assistance as

1 necessary for the performance of its functions, subject to available
2 funding and authorized full-time equivalent employee limitations.
3 The Board may expend appropriated funds for purposes consistent with
4 Sections 751 through 761 of this title and Sections 301 through 308
5 of Title 3 of the Oklahoma Statutes. The Legislature shall
6 appropriate funds to the Department of Public Safety for the support
7 of the Board of Tests For Alcohol and Drug Influence and its
8 employees, if any. Upon the transfer of any employees from the
9 Alcohol Drug Countermeasures Unit of the Department of Public Safety
10 to the Board of Tests For Alcohol and Drug Influence on July 1,
11 2003, all funds of the ~~Unit~~ unit appropriated and budgeted shall be
12 transferred to the Board~~7~~ and may be budgeted and expended to
13 support the functions and personnel of the Board.

14 B. The Board is authorized to prescribe uniform standards and
15 conditions for, and to approve satisfactory methods, procedures,
16 techniques, devices, equipment~~7~~ and records for, tests and analyses
17 and to prescribe and approve the requisite education and training
18 for the performance of tests or analyses of breath to determine the
19 breath alcohol concentration. The Board shall establish standards
20 for and ascertain the qualifications and competence of individuals
21 to administer tests and analyses of breath to determine the breath
22 alcohol concentration~~7~~ and to issue permits to individuals which
23 shall be subject to suspension or revocation at the discretion of
24 the Board. The Board is authorized to prescribe uniform standards,

1 conditions, methods, procedures, techniques, devices, equipment, and
2 records for the collection, handling, retention, storage,
3 preservation, and delivery of specimens of blood, breath, saliva,
4 and urine obtained for the purpose of determining the alcohol
5 concentration thereof or the presence or concentration of any other
6 intoxicating substance therein. The Board may take such other
7 actions as may be reasonably necessary or appropriate to effectuate
8 the purposes of Sections 751 through 761 of this title and Sections
9 301 through 308 of Title 3 of the Oklahoma Statutes, and may adopt,
10 amend, and repeal such other rules consistent with this chapter as
11 the Board shall determine proper. The Board is authorized to
12 delegate authority granted in this section to the State Director of
13 Tests as it deems appropriate.

14 C. The Board shall promulgate rules adopting uniform standards
15 and conditions and rules approving devices, equipment, methods,
16 procedures, techniques, and records for screening tests administered
17 for the purpose of determining the presence or concentration of
18 alcohol or any other intoxicating substance in a person's blood,
19 breath, saliva, or urine. Such screening tests shall be performed
20 in compliance with the rules adopted by the Board of Tests for
21 Alcohol and Drug Influence. For purposes of this subsection,
22 "screening test" means the use of devices, equipment, methods,
23 procedures, techniques, and records by law enforcement officers at
24 roadside to assist in the development of probable cause.

1 D. The Board may set rules and charge appropriate fees for
2 operations incidental to its required duties and responsibilities.

3 E. There is hereby created in the State Treasury a revolving
4 fund for the Board of Tests for Alcohol and Drug Influence to be
5 designated the "Board of Tests for Alcohol and Drug Influence
6 Revolving Fund". The fund shall be a continuing fund, not subject
7 to fiscal year limitations, and shall consist of monies received
8 pursuant to the provisions of subsection D of this section and any
9 funds previously deposited in the Board of Tests for Alcohol and
10 Drug Influence Revolving Fund. All monies accruing to the credit of
11 the fund are hereby appropriated and may be budgeted and expended by
12 the Board of Tests for Alcohol and Drug Influence for operating
13 expenses of the Board. Expenditures from the funds shall be made
14 upon warrants issued by the State Treasurer against claims filed as
15 prescribed by law with the Director of the Office of Management and
16 Enterprise Services for approval and payment.

17 SECTION 2. This act shall become effective July 1, 2026.

18 SECTION 3. It being immediately necessary for the preservation
19 of the public peace, health, or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

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23 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
24 04/08/2026 - DO PASS.